

First Draft

Reports on the Implementation of the Convention against Discrimination in Education (1960) Recommendation against Discrimination in Education (1960)



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Introduction

1. Background

The Convention against Discrimination in Education (1960) prohibits discrimination in education 'based on race, color, sex, language, religion, political or other opinion, national or social origins, economic condition or both'. The convention came into force on 22 May 1962. The convention adopted by UNESCO recalling the Universal Declaration of Human Rights which asserts the principle of non-discrimination and proclaims that every person has right to education. Recognizing the diversities of national education systems, UNESCO as an UN agency, promotes equality of opportunity and treatment for all in education. In this regard, UNESCO monitors the implementation of the convention and the recommendation against discrimination in education. Nepal, as the member country of the UNESCO, has prepared this report.

Nepal has made number of efforts against discrimination in education. These efforts include change in legal provisions, reform in policies and intervention in educational programs. These activities have advanced the ideal of equality of educational opportunities without regard to race, sex, castes or any type of discriminations, economic or social stating even it on the fundamental law of the state. This report tries to cover these related activities from 2000 to 2005.

2. Country Context

Although Nepal is a small country, it has a great physical as well as socio-cultural diversity. Commonly it is divided into three broad geographical areas: the Mountain Region, the Hill Region, and the Tarai Region. All three parallel each other, from east to west, as continuous ecological belts. The population of Nepal is 23.1 million according to the 2001 census. Female population is slightly greater (50.1%) than male population (49.9%). Out of total population, 7.3% live in mountain region, 44.3% live in hill region and 48.4% live in terai region. About 26% of the population (i.e. 6 million) belongs to the official school going age group of 6-15 years. The census shows that there are 101 different castes/ethnic groups, including those that are not identified categorically. Mainly they are Chetri (15.8%) Brahman (12.74%), Magar (7.14%), Tharu (6.75%), Tamang (5.64%), Newar (5.48%), Muslim (4.27%) Gurung Rai, Limbu, Sherpa. Altogether 92 different languages and a number of dialects have been registered as a mother tongue. Mainly they are Nepali (48.61%), Maithili (12.30%), Bhojpuri (7.53%), Tharu (5.86%), Tamang (5.89%), Newar (3.63%), Magar (3.39 %). Nepali language is the official language. The census report shows that there are 80.6% Hindus, 10.74% Buddhists and 4.2% Muslims. Christians are 0.36% in Nepal. (CBS, 2002).

Administratively Nepal is divided into five development regions, 14 zones, 75 districts, 58 municipalities and 3915 Village Development Committees (VDCs). The Census shows that only 14% of the population lives in urban areas and about 86% of the population lives in rural areas. Nepal is among the poorest and least developed countries in the world with 38% of its population living below the absolute poverty line (NPC, 2002 -10th plan). The share of agriculture and non-agriculture to GDP is around 40% and 60% at constant price of factor cost respectively.

Majority of the population lives in rural areas and poverty is often a common phenomenon for the entire community in most of rural Nepal, and more particularly in mid-western and far-western regions as shown by human development indicators. Literacy Rate (6+) is 54% in total where male literacy rate is 65.08% and female literacy rate is 42.49%. The factors, such as high population growth rate, slow economic growth, and insufficient social and economic infrastructure have been contributing to poverty in Nepal.

3. Education sector: a brief description

Education in Nepal has remained a state affair since long ago, which has led to direct involvement of the government, so far, in the policy making, planning, organizing, and financing of educational activities in the country. Since 1990, the concept of school education emerged as a fundamental human rights in global context as well as in the national context that the state has an obligation to fulfill gained momentum. Consequently, the five-year plans of Nepal - from the 8th plan to the 10th - have placed high priority on poverty reduction and thereby considered education as the medium of poverty reduction.

Nepal has set the new national goals of education as per the recommendation of National Education Commission report 1992. The National goals are as follows:

- To nurture and develop the personalities and innate abilities of each individual
- To instill respect for human values and the will to safeguard national and social beliefs so as to enhance social unity
- To help the individual develop her or his identity in both national and international context and lead a socially harmonious life in the modern world
- To aid the modernization of the nation by creating able human resources for its development
- To teach the thoughtful protection and wise use of Nepal's natural resources
- To help bring those who are disadvantaged to enter the main stream of national life.

Ministry of Education and Sports (MOES) is responsible for taking care of policy making in the education sector across the country. The vision of Ministry of Education and Sports (MOES) is to contribute to national development and poverty reduction by enabling its citizens to acquire knowledge and skills compatible with the needs of the national and international economy, enhancing their employability and personal development, nurturing in them social values to promote social harmony and equity, and by developing the knowledge and technological base to enable Nepal to compete in the global economy. Although the realization of this vision calls for improvements at all levels of the education system, more emphasis requires, particularly, to the basic and primary education. Some of the specific role of the ministry are Formulation of educational policies in line with the constitution, acts, regulations and other national and international commitment, evaluate the educational policies whether they are in line with national needs and social inclusion, Carry out national educational standards and policy analysis, Carryout policy towards the excluded groups in terms of their access to education, promote the quality and access to education to all. Under the MOES, there are different functional departmental organisations to facilitate service delivery system.

Department of Education (DOE) is responsible for planning, implementing and monitoring the school education related activities across the country. National Center for Educational

Development (NCED) is an apex institution for the human resource development activities within ministry system. Curriculum Development Center (CDC) is responsible to develop school curricula, textbooks, teacher guide and other reference materials. Non-Formal Education Center (NFEC) is responsible to implement and monitoring the non-formal education across the country. Office of the controller of examination is responsible for the school leaving certificate examination within the ministry system. In central level there are some other autonomous bodies. Higher Secondary Education Board (HSEB) has responsibility of managing the higher education. University Grants Commission (UGC) is responsible for developing policy and funding for university and other university related issues. Council for Technical Education and Vocational Training (CTEVT) has over all responsibility for the management of technical education and vocational training.

In the regional level, there are five Regional Educational Directorate (RED) offices which are responsible for the monitoring of all educational activities conducted by the District Education Offices (DEOs). In the district level, DEO is responsible for the planning, implementing and monitoring the educational activities. Under the district education offices there are Resources Centers (RC), comprising 15- 20 schools, in operation to provide school based training and other technical support to the schools. At School level, School Management Committee (SMC) is responsible for the management of school. It is also responsible for the planning and resource generation at school level. The following table shows present education scenario.

Table 1: Education at glance in 2005

Level	Institutions	Public Institution (in %)	School age population (Census 2001)	Total enrolments	Girls student (in %)	GER	GPI
Pre Primary/ECD Centers	13023		1228628	922557	46.2	69.9	0.91
Primary	27525	77.3	3176880	4502697	47.4	145.4	0.95
Lower Secondary	8471	67.8	1687290	1374996	45.7	76	0.81
Secondary	5039	62.2	1065164	587177	45.7	49.3	0.86
Higher Secondary	1018	52.6	926176	364404	43.3	31.6	0.78
Higher Education	520	16.2	-	141636	32.7	5.4	0.48

(Source: CBS 2002, MOES 2006, DOE Status report 2005)

Table 2: GER at different level by sex in different year

Level /Year		2003	2004	2005
Primary	Total	126.7	130.7	145.4
	Girls	117.1	124.2	141.8
	Boys	136.0	137.0	148.8
Lower Secondary	Total	60.0	80.3	76.0
	Girls	54.3	73.9	68.2
	Boys	65.2	86.4	84.0
Secondary	Total	46.4	50.4	49.3
	Girls	41.3	45.2	45.5
	Boys	51.5	55.4	53.0

Table 3: NER at different level by sex in different year

Level /Year		2003	2004	2005
Primary	Total	83.5	84.2	86.8
	Girls	77.5	78.0	83.4
	Boys	89.4	90.1	90.1
Lower Secondary	Total	42.9	43.9	46.5
	Girls	38.7	40.2	43.1
	Boys	46.8	47.6	49.8
Secondary	Total	29.5	32.0	32.4
	Girls	26.3	28.8	29.2
	Boys	32.7	35.2	35.5

Table 4: Average Annual growth rate (2000-2005)

Heading/Level	Primary	Lower Secondary	Secondary
Number of schools	1.2	3.1	3.0
Number of Total Student	4.4	7.5	9.5
Number of Female Student	6.0	9.6	10.7
Number of Total Teachers	0.9	0.6	0.9
Number of Female Teachers	5.4	8.6	3.8
Number of Full Trained Teachers	27.6	8.0	3.7
Number of Full Trained Female Teachers	18.0	4.8	0.7

Status of main elements as per the provisions made in the Articles

Since the convention adopted several articles, the report highlights mainly five articles related to right to education, gender parity and equality in education, legal and administrative measures, policies/strategies and programs to achieving EFA, policy framework for minimum educational standards. Legal provision, policy reform and program interventions are discussed under each article.

Article 1: Right to Education

This article emphasizes on access to education as a fundamental human rights i.e. equality of treatment in education.

1. Legal provision

The constitution of The Kingdom of Nepal, 1990, has been guaranteed the basic human rights as well as fundamental rights to every citizen. It has pursued liberty, equality, social, political and economic justice, rule of law and the sovereign power of the people. The provision of the fundamental rights ensures equality in the application of general laws of the state. It also prohibits against all types of discriminations to the citizens on grounds of religion, race, sex, caste, tribe or ideological conviction or any of these. The constitution has also provided right to the communities to operate primary school in their own mother tongue.

Primary education is free of charge to all. Education act and regulation has made this provision. Secondary education is based on cost sharing basis, however, education act has preserved the right of children from Dalit, marginalized, ultra poor, ethnic minorities to get secondary education as free of charge. Similarly, Education regulation has made provision of non-formal and special need education for out of school children and special needs children. In addition, Children's Act 1992 and Child Labor Act 2000 right act have ensured the right to education and prohibited child labor.

2. Policy initiatives

In line with the legal provisions made, the Government of Nepal has adopted policy of ensuring access to and quality of primary education to all children. For this, several policy initiatives documents have been developed, for example, EFA /NPA, Nepal, which has been prepared on the basis of Dakar Framework, including one additional goal –'ensuring the right of indigenous people and linguistic minority to basic and Primary Education through mother tongue. The 10th five-year plan aims at improving the access to and quality of primary education. The policy of technical and vocational education has also stressed on right to education including the provision of providing equitable access to employment –based technical and vocational education and training to school drop outs, non college bound youths and literate adults

3. Programs/interventions

In order to materialize the policy adopted Nepal has launched Basic and Primary Education Program (BPEP II) 1997- 2002. The main thrust of this program was to expand access, to improve quality and institutional capacity building. Education for All (EFA) 2004-009 is the continuation of BPEP II. It has six program components in line with Dakar declaration.

Table 5: Enrolment by level, sex and social group in 2005

Social Group / Level	Primary		Lower Secondary		Secondary	
	Total	Girls (in %)	Total	Girls (in %)	Total	Girls (in %)
Total	4502697	47.4	1374794	45.7	587177	45.7
Dalit	969059	34.5	107482	43.2	29989	40.7
Janajati	1602047	48.4	484391	47.0	186692	46.1

4. Gaps/challenges/Issues

Education act and regulation have not ensured properly or adequately education as the fundamental right of the child.

Article 2: Gender parity and equality in education

This article focuses on equivalent access to education if separate educational system or institutions exist for two sexes, establishment of a separate education system for religious or linguistic purposes and a regulatory framework for private educational institutions in order to ensure equality of educational opportunity.

1. Legal provision

According to the constitutional provision, there is no discrimination to be made against any citizen in the application of general laws on grounds of religion, race, sex, caste, tribe or ideological conviction or any of these. The constitution has also made the provision of providing primary education in mother tongue. It also states that the state pursues policy of making the female population participate, to a greater extent, in the task of national development by making special provisions for their education, health and employment. Similarly, the education act and regulations have made provision that institutional schools (private school) must provide scholarship to poor and disadvantaged girls. In addition, these institutions should contribute in rural education fund for the purpose of supporting rural

community schools in order to ensure equality of educational opportunity. There is also mandatory provision of recruiting female teachers in primary schools.

2. Policy provision:

The 10th plan has made the policy of ensuring gender parity in education at all levels. The fifth EFA Goal, 'Eliminating gender disparities in education is the directive policy for reducing the gaps. In the same line, The Secondary Education Support Programme (SESP) document focuses on achieving gender parity in school education. The core document, EFA 2004-09, has emphasized on meeting the learning needs of all children including indigenous people and linguistic minorities.

3. Programs/interventions

In view with the implementation of the policies, the government has established a Girls Education fund to provide scholarships and incentives to poor and disadvantaged girls for the continuation of their higher education. Similarly, institutional integration programs have been launched to mainstream the religious schools under the EFA program 2004-2009. In addition, EFA also targets to raise the living standards especially of the backward communities and women by carrying out programmes of literacy; post literacy, income generating and life skill education. In order to address the need of children from ultra poor communities, food for education program has been launched with girl's incentive package and maternal health care nutrition programme, especially in food deficit districts. The curriculum and textbooks have been developed in twenty different national languages. The government has launched several programmes to reduce the gaps, such as construction of separate toilets for girls, incentives to schools for improving the access and for recruiting dalit teachers, scholarship for girls and dalit students, providing mid day meal to children (poor, karnali zone) incentives for recruitment of female teachers, providing free lower secondary and secondary education to all Dalits students

Table 6: Girls Participation in percentage (2000 -2005)

Heading/Level		2000	2005
Percentage of Girl's Enrolment	Primary	44.1	47.4
	Lower Secondary	41.5	45.7
	Secondary	40.6	45.7
Girls GER	Primary	114.7	141.8
	Lower Secondary	54.0	68.2
	Secondary	38.0	45.5
Girls NER	Primary	75.1	83.4
	Lower Secondary	33.7	43.1
	Secondary	20.9	29.2
Primary Cycle completion rate (Girls)		37.2	56.9
Survival Rate at Grade 5 (Girls)		64.7	65.5

Table 7: Percentage of Female Teacher in different year

Level	2000	2001	2002	2003	2004
Primary	25.3	25.3	28.6	29.1	30.1
Lower Secondary	12.0	14.0	15.9	16.4	16.3
Secondary	7.6	7.9	10.2	9.4	8.6

4. Gaps/challenges/Issues

There are still several challenges encountered in reducing gender disparities in education. Some of them are listed below.

- Around 13% primary school aged children are still out of school. Among them two-thirds are girls
- Cultural and socio-economic barriers
- The difference of 13 percentage point in the NER of boys and girls illustrates the existence of discrimination in school education
- Gender disparity among teachers is relevant as about 11,000 primary schools still do not have female teachers despite the national policy and legal provision that at least one female teacher will be placed in every primary schools. Of all primary teachers only about 30% are females and of all head teachers, only 8 % are female at primary level.

Article 3: Legal and Administrative Measures

This article mainly concentrates on non-discrimination in the admission of pupils to educational institutions, non-differential treatment, assistance granted by public educational authorities to educational institutions and treatment of foreign national residence in the country. Further, it also highlights the anti-discriminatory measures in the form of financial incentives, fellowships, positive or affirmative action in order to guarantee equal access to all levels of education.

1. Legal provision

The constitution of Nepal states that "no person shall, on the basis of cast, be discriminated against as untouchable, be denied access to any public place, or be deprived of the use of public utilities". The Local Self Governance Act (LSGA) and Education Act (7th amendment, 2001) focus on the need of involving community in educational processes with emphasis on ownership, accountability, local control over effective utilization of resources, and local resource mobilization.

Education act has made the provision of opening schools for foreign national residence in the country on the recommendations of Diplomatic Agencies.

2. Policy provision

There is no discrimination in the admission of pupils to educational institutions. Following the spirit of LSGA on decentralization, responsibility for educational planning and management is being transferred to the local bodies and communities. Capacity of the local bodies, communities, and School Management Committees is being enhanced to take the necessary leadership in educational planning and management in local level.

Affirmative policies have been taken to mainstream girls, Dalits and disadvantaged groups in education. Special reservation has been made in scholarship in higher education for women, Dalits and ethnic groups.

Regarding the administrative measures, the role of the government is being changed from implementing to facilitating by strengthening management capacity of local community. Moreover, grant for salary cost, facility upgrading and recurrent cost, promote private provision for basic and middle level technical training and promotion of private sector in imparting higher education. Similarly, government funds have been released to individual school in the form of block grants, earmarked grants and performance grants schemes.

3. Programs/interventions

Management transfer of schools to the local community is the paradigm shift which includes teacher recruitment and monitoring of teaching learning activities in schools. In order to ensure funds closer to implementing agencies, School Improvement Plan (SIP) has been taken as a tool to improve access and quality of school education by which schools receive grants on the basis of number of enrolled children in schools.

4. Gaps/challenges/Issues:

There is a lack of required proper indicators to identified very needy children. Blanket approach of affirmative action prevails in providing incentives.

Article 4: Policies/strategies and programs to achieving EFA

This article particularly envisions developing laws and policies, and strategies and programs for quality basic education to all particularly girls, children in difficult circumstances and

those belonging to ethnic minorities. It also looks for the difficulties that the government has encountered in the realization of universal access to free primary education.

1. Legal provision

The Directive Principles and Policies Guidelines of the constitution direct the government general policies and programs toward promoting social, economic and political system through open society, justice and morality. It also guides for a healthy social life by eliminating all types of social and economic inequalities by establishing harmony amongst the various castes, tribes, religions, languages, races and communities. The constitution provides the policy direction that the state has to make necessary arrangement to safeguard the rights and interests of children and to ensure that they are not exploited and to make gradual arrangements for free education.

Primary education is free of charge. Secondary education is not free; however, education act has preserved the right of children from Dalit, marginalized, ultra poor, and ethnic minorities to get secondary education as free for charge. Special provisions may be made by law for the protection and advancement of the interests of women, children, the aged or those who are physically and mentally incapacitated or those who belongs to a class which is economically, socially or educationally backwards. Education Act has made mandatory provision of teaching license to ensure professionally competent teacher to enhance the quality in school education.

2. Policy provision

EFA focuses on expanding early childhood development, ensuring equitable access to education; meeting the learning needs of all; increasing literacy rate by expanding non-formal educational programs; eliminating gender disparity; and improving all aspects of quality education.

The policy also emphasizes on developing inclusive and integrated education system, designing Integrated and gender friendly curriculum, providing minimum level of required training (10 month teacher preparation course) at all level and alternative schooling.

Secondary Education Support Program (SESP) focuses on improving and strengthens the secondary school education system, developing sustainable system, improving the access, quality and equity in secondary education, Policy objectives focuses on Quality and Relevance, Access/Equity, Institutional Capacity.

Teacher Education Project (TEP) focuses on strengthening teacher education system by improving the quality and coverage of teacher training through building institutional capacity for a teacher training system and increase the representation of disadvantaged groups, in particular women, in the teaching force.

3. Programs/interventions

Basic and Primary Education Program (BPEP) II was implemented to improve access, quality and institutional capacity for basic and primary education. EFA (2004-009) draws from the goals of the Dakar Framework of Action as reflected by the six-program component. Major ones are:

- Increasing the number of Early Childhood Development (ECD) centers
- Construction of classroom, separate toilets for girls, alternative schooling, resources classes for special needs children, community learning center etc
- Bilingual teaching learning activities, developing textbooks and learning materials
- Incentives or scholarships provision for girls, Dalits and minorities, feeder hostel facility
- Women literacy program, income generating program, Program for reenrollment of drop out students of grades 1-3
- School Improvement plan, free textbook distribution, teacher training etc.

SESP includes programs related to the learning environment (Construction of classroom and school building, rehabilitation of school, improving external environment of school-safe drinking water, separate toilets for girls, scholarships etc.) curriculum and assessment teacher development and institutional capacity building.

The TEP includes basically 10 month in-service teacher training to all untrained and partially trained teachers and scholarship for pre-service training to disadvantaged groups, in particular women to invite them in teaching force.

In recent years, there is a significant progress in the field of basic and primary education. For example, Net Enrolment Rate (NER), Primary cycle completion rate, Ratio of girl students and female teachers and trained teachers have increased. The following tables illustrate the evidences in this regard

Table 8: Progress on EFA indicators

SN	Indicators	Base line 2001	Achievement up to 2005
1	GER of ECD/PPC	13	47
2	% of new entrance at grade 1 with ECD	8	
3	GIR at Grade 1	141	148.1
4	NIR at Grade 1	53.7	
5	GER	123	145.4
6	NER	81	86.8
7	% of GNP channelled to Primary education sub sector	1.7	2.2
8	% of Total Education budget channelled to Primary education sub sector	55.6	58
9	% of teachers with required qualification and training	15	45
10	% of teachers with required certification		99
11	Pupil teacher ratio	39	49.8
12.1	Repetition rate :Grade 1	39	23.8
12.2	Repetition rate :Grade 5	9	10.4
13	Survival rate to grade 5	66	79.1
14	Coefficient of efficiency	60	68
15	% of learning achievement at grade 5	40	
16.1	Literacy rate: age group 15-24	70	70
16.2	Literacy rate: Age group 6+ years	54	54
17	Adult Literacy (15+ years)	48	48
18	Literacy Gender Parity Index (15+ years)	0.6	0.6

4. Gaps/challenges/Issues:

One of the major issues is that the primary education is free but yet to be compulsory. Another issue is that A substantial proportion of primary school going age population still outside the school system is from the Terai and belongs to disadvantaged group such as dalits, girls, children with disabilities and other marginalized group

Article 5: Policy framework for minimum educational standards

This article envisioned the education policy framework for minimum educational standards as regards the rights of the parents for providing religious and moral education for their children and the choice of educational institutions

1. Legal provision

Under the fundamental rights cultural and educational rights have been guaranteed. Each community has the right to preserve and promote its language, script and culture and to

operate schools up to primary level in its own mother tongue for imparting education to its children

2. Policy provision

Education act provides the policy directives for school accreditation (grading system) and development of norms and standards for quality education for all levels, and effective mechanisms for monitoring and evaluation in all types of schools.

3. Programs/interventions

There are no specific programs in this regard. However, school accreditation program has been initiated in order to funding block grants to the individual school

4. Gaps/challenges/Issues

There is still a challenge to make widely accepted comprehensive policy guidelines and measurable indicators

Article 7: SWOT analysis

Strengths • Constitutional and legal provision • Continued commitment of the government • Continue support of the Donor agencies (Development partner) • EMIS (Flash reporting system) • Awareness increased in community level • Institutional arrangement from center to local community level to deliver the educational services	Weakness: • Fragmentation of program • Frequent change in leadership • Weak implementation of the program • Weak EMIS
Opportunity: • Partnership with stakeholders • Commitment and faith of International agencies • Increasing involvement of NGOs/INGO	Threats: • Resources (heavy dependency on foreign aid and grants) • Internal insurgency and political instability • Physical infra structure • Public awareness

Conclusions

During the last five-year period, the legal provisions made, policies and strategies adopted and implemented programs and projects considerably contributed in reducing and eliminating all forms of discriminations in education. In this period, educational policies and programs are heavily guided by the 'EFA 2015' targets and 10th five year. At the same time educational programs concentrated on the decentralization in educational management to improve access in and quality of education. Some of the remarkable reforms are teacher licensing, changed funding modalities, revised primary school curricula, and teacher training in massive scale in all levels.

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